

Ritesh Singh v. State of U.P.

Allahabad High Court · Division Bench · 7 March 2025 · 2025:AHC:33448-DB · Writ - C No. 2656 of 2025 · **Writ disposed; petitioner directed to apply under clause 6.5.**

HEADNOTE

A consumer seeking installment payment of electricity dues and restoration of supply was directed to apply under clause 6.5 of the U.P. Electricity Supply Code, 2005. If the application was filed in time, the authority was to hear the petitioner and pass a reasoned order within eight weeks. A later order extended the filing window by two further weeks, with no further extension.

FACTUAL SUMMARY

Ritesh Singh filed a writ under Article 226 seeking a direction that the respondent authorities receive the actual electricity amount due from him after calculation, accept payment in easy installments, and restore his electricity connection. The State of Uttar Pradesh and three other respondents appeared through Standing Counsel and counsel for the licensee. No dispute on the facts of disconnection or the quantum of dues was tried in the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

restoration and installment application

HOLDING

The writ for installment payment of dues and restoration of supply was not decided on merits. The petitioner was directed to file an application under clause 6.5 of the U.P. Electricity Supply Code, 2005; if filed within two weeks, the authority was to grant a hearing and pass a reasoned order in accordance with law within eight weeks. A later order, describing the same provision as “Section 6.5”, extended the filing time by two further weeks and barred any further extension. ¶ 3-4

FLAG The 16.5.2025 extension order refers to “Section 6.5” of the Supply Code; the 7.3.2025 disposal correctly calls it “Clause 6.5”.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — QUANTUM OF ELECTRICITY DUES, ENTITLEMENT TO INSTALLMENTS, AND RESTORATION OF SUPPLY

Left to a clause 6.5 application and a reasoned order by the authority after hearing. ¶ 3